

NON-DISCLOSURE & CONFIDENTIALITY AGREEMENT

This non-disclosure agreement ("Agreement") is entered into by The Starco Group and its affiliates having a place of business at 3137 E. 26th St Pacific, Vernon, CA 90058 ("TSG") and Jacob Bevier located at 105 Pendleton Trail, Tyrone, GA 30290 ("Recipient").

This Agreement is made in order for the parties to discuss certain confidential information regarding each parties business under the terms that will mutually protect the confidential and proprietary nature of such information.

1. Confidential Information: TSG and Recipient mutually recognize that each party has developed and is the exclusive owner of a substantial body of trade secrets and products. Confidential Information means any information, terms, conditions, financial information, product information, marketing practices, customers, vendors, sales reps, distribution networks and distribution footprints. Confidential Information shall also include, without limitation, know-how, product information, market information, marketing information, test data, testing information, testing procedures, competitive testing and other confidential information relating to its business, including, information regarding chemical formulas, customers, suppliers, business arrangements, potential acquisitions or sale arrangements, technical and business data, processes, designs, ideas, trade secrets of either party, any nonpublic information relating to either party's product, plans, designs, costs, prices, finances, marketing plans, business opportunities, business models, business plans, personnel, affiliate companies, research, development, materials, raw materials and any other nonpublic technical, business or marketing information of the party disclosing such information that the receiving party knows or has reason to know the Discloser would like to treat as confidential for any purpose, such as maintaining a competitive advantage, minimizing legal exposure or avoiding undesirable publicity. In addition, Confidential Information shall include, without limitation, information relating to the Project, including the details thereof of and the Project itself is under strict confidentiality.
2. Nondisclosure: Except with the prior written consent of the disclosing party or as specifically provided herein, the recipient of the disclosing party's Confidential Information shall not, and shall direct its affiliates and their respective directors, officers, employees, agents, and other representatives (collectively, "representatives"), clients, vendors, partners, affiliates or entities in connection, not to disclose or permit the disclosure to any third party of any Confidential Information disclosed to it by the disclosing party or such disclosing party's affiliates or representatives. For purposes of this Agreement, a party's "affiliates" shall include any entity that controls, is controlled by, or is under common control with such party, and a party's "representatives" shall include the representatives of its affiliates.
3. Confidential Information shall not include information that (i) is or becomes generally known; (ii) is known at the time of disclosure by Discloser; (iii) is independently developed by either party; (iv) is lawfully obtained by either party from a third party who has the right to make such disclosure; (v) is released for publication by Discloser in writing.
4. The parties mutually agrees that for a period of three (3) years following the execution of this Agreement, and their employees, agents or any affiliates shall hold all Confidential Information in strict trust and confidence and shall not disclose or use the same, except to the extent necessary for the performance of this Agreement. Further, the parties shall not disclose Confidential Information to any affiliate without written consent from an officer of either Company.
5. This Agreement may be executed in any number of counterparts, each of which shall be deemed an original instrument, but all of which together shall constitute only one and the same instrument. The validity, construction and enforceability of this Agreement shall be governed in all respects by the laws of California. Each party to this Agreement hereby submits to the jurisdiction of the courts of the State of California.
6. The parties warrant that they have the right to disclose the Confidential Information to the parties. Otherwise, all information is provided "AS IS" and without any warranty, express or implied, including any warranty of merchantability or fitness for a particular purpose.
7. This Agreement supersedes any and all prior representations, conditions, warranties, understanding, proposals or previous agreements between the parties, oral or written, relating to the subject matter hereof and constitutes the complete agreement between the parties. Should any of the provisions of this Agreement be found to be invalid by any court of competent jurisdiction, that portion shall be deemed severed or restricted and the remainder of this Agreement shall remain in full force and effect.
8. If any action or proceeding shall be commenced to enforce or interpret this Agreement or any right arising in connection with this Agreement, including the formation, interpretation, breach or termination thereof, including whether the claims asserted are arbitrable, will be referred to and finally determined by arbitration in accordance with the JAMS International Arbitration Rules. The Tribunal will consist of one arbitrator. The place of arbitration will be Los Angeles County in the State of California. Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction thereof.

The parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the date set forth below.

The Starco Group

By: John Decker

John Decker

Name and Title (Print)

12-17-2024

Date

Brag & Bev L.L.C

By: Jacob Bevier

Jacob Bevier CEO

Name and Title (Print)

17 December 2024

Date